

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF NAGIBIN AND RYAZANTSEV v. RUSSIA

(Applications nos. 71977/12 and 3 others – see appended list)

JUDGMENT

STRASBOURG

5 April 2022

This judgment is final but it may be subject to editorial revision.



In the case of Nagibin and Ryazantsev v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli, *President,*
Peeter Roosma,
Mikhail Lobov, *judges,*
and Olga Chernishova, *Deputy Section Registrar,*

Having regard to:

the four applications against the Russian Federation lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table by two Russian nationals, Mr Pavel Nikolayevich Nagibin ("the first applicant") and Mr Vladislav Yuryevich Ryazantsev ("the second applicant"), who in application no. 77503/12 were both represented before the Court by Mr O. Agafonov, a lawyer practising in Rostov-on-Don;

the decision to give notice of the complaints concerning violations of the rights to freedom of expression and assembly, the right to a fair trial and the right to an effective remedy to the Russian Government ("the Government"), initially represented by Mr M. Galperin, former Representative of the Russian Federation to the European Court of Human Rights, and later by his successor in this office, Mr M. Vinogradov, and to declare the remainder of the applications inadmissible;

the parties' observations in application no. 77503/12;

Having deliberated in private on 15 March 2022,

Delivers the following judgment, which was adopted on that date:

SUBJECT MATTER OF THE CASE

1. On 20 January 2012 Mr Nagibin and five other persons notified the Rostov-on-Don Town Administration of their intention to hold a public event in support of fair elections in the centre of Rostov-on-Don, proposing several alternative locations including Teatralnaya Square. The event was scheduled for 4 February 2012. On 23 January 2012 the Town Administration refused to approve the time and any of the proposed locations of the public event. With regard to Teatralnaya Square in particular, Mr Nagibin and other event organisers were informed that another public event, namely "For honest and clean democracy", was already scheduled to be held by the Liberal Democratic Party of Russia ("the LDPR") at the same time and location. At 2.30 p.m. on 4 February 2012 Mr Nagibin, together with an unspecified number of persons, arrived in Teatralnaya Square and joined the public event organised by the LDPR. At the event, Mr Nagibin spoke out on the alleged illegality of the State Duma elections and distributed leaflets in support of his position. A police officer present at the scene ordered Mr Nagibin, and others who had arrived with him, to stop their unauthorised meeting and to leave the

square. As Mr Nagibin refused to comply with that order, he was arrested at 3.30 p.m. and taken to the police station for the purposes of compiling an administrative-offence record.

2. On 11 April 2012 the justice of the peace of the 3rd Circuit of the Proletarskiy District of Rostov-on-Don found Mr Nagibin guilty under Article 20.2 § 1 of the Code of Administrative Offences ("the CAO") for holding an unauthorised public event and fined him 1,000 Russian roubles (equivalent to about 26 euros at the time). The court dismissed Mr Nagibin's argument that he had simply joined the LDPR's public event, which was in line with the message he had wished to convey, and that he had not staged an event of his own. On 25 July 2012 the Proletarskiy District Court of Rostov-on-Don upheld the above-mentioned judgment on appeal.

3. The applicants were also refused to hold a number of other public events on different dates in 2012, and Mr Nagibin was in addition administratively prosecuted and fined for having organised and taken part in the unauthorised public events in 2012 and 2016. The relevant facts and complaints are set out in the appended table.

THE COURT'S ASSESSMENT

I. JOINDER OF THE APPLICATIONS

4. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLES 10 AND 11 OF THE CONVENTION

5. In application no. 77503/12, Mr Nagibin complained that his being escorted to a police station and the administrative-offence proceedings against him had violated his rights to freedom of expression and peaceful assembly, contrary to Articles 10 and 11 of the Convention.

6. The Court notes that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention or inadmissible on any other grounds. It must therefore be declared admissible.

7. The Court will examine this complaint under Article 11 of the Convention, taking into account the general principles it has established in the context of Article 10 of the Convention (see *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, §§ 363-65, 7 February 2017).

8. It has not been disputed by the parties that Mr Nagibin's arrest during the demonstration and his subsequent conviction constituted an interference with his right to freedom of assembly. That interference was based on Article 20.2 § 1 of the CAO, which establishes administrative liability for a breach of the procedure for holding a public event. The Court is ready to

accept that the interference pursued the legitimate aims of "prevention of disorder" and "protection of the rights and freedoms of others". It remains to be ascertained whether the interference was "necessary in a democratic society".

9. The Court notes that the domestic courts found the first applicant guilty of staging an unauthorised public event while rejecting his arguments that he had simply joined the LDPR's authorised gathering (see paragraph 2 above). They omitted to indicate, however, any factual basis for their findings in that regard. The domestic decisions contain no analysis as to what the alleged differences were between the LDPR's and Mr Nagibin's public events in terms of the message they conveyed and targeted audience. Moreover, there is no indication that the organisers of the LDPR's gathering viewed Mr Nagibin's presence as a separate public event or were troubled by his actions in any way (see, by contrast, *Fáber v. Hungary*, no. 40721/08, §§ 53-58, 24 July 2012). It was not argued that Mr Nagibin's behaviour had been considered provocative by other participants or that the leaflets distributed by him had been intimidating or capable of inciting violence and disturbing public order (see *Sergey Kuznetsov v. Russia*, no. 10877/04, § 45, 23 October 2008). Even assuming that Mr Nagibin's peaceful presence at the LDPR's gathering amounted to staging a demonstration of his own, the absence of its prior authorisation and the ensuing "unlawfulness" of the action do not as such justify his arrest, removal from the venue of the event and subsequent administrative conviction. In such case it was incumbent on the domestic courts to establish why the authorities had not authorised Mr Nagibin's event in the first place (see paragraph 1 above), in particular, what the public interest at stake was and what risks were represented by his event (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, §§ 150 and 151, ECHR 2015, and *Lashmankin*, cited above, § 422). Their decisions, however, contain no such assessment and thus fall short of the requirements of Article 11 read in the light of Article 10 of the Convention.

10. The Court concludes that the first applicant's removal from the gathering venue, arrest and administrative conviction had not been necessary in the circumstances of the case. There has accordingly been a violation of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS OF THE CONVENTION UNDER WELL-ESTABLISHED CASE-LAW

11. Mr Nagibin and Mr Ryazantsev also raised other complaints which are covered by the well-established case-law of the Court (for further details, see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other grounds. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes

that they disclose a violation of Articles 11 and 13 of the Convention in the light of its findings in *Lashmankin and Others* (cited above, §§ 402-77), *Frumkin v. Russia* (no. 74568/12, §§ 93-142, 5 January 2016), *Navalnyy and Yashin v. Russia* (no. 76204/11, §§ 49-75, 4 December 2014), and *Kasparov and Others v. Russia* (no. 21613/07, §§ 82-97, 3 October 2013), and of Article 6 § 1 of the Convention in the light of its findings in *Navalnyy v. Russia* ([GC], nos. 29580/12 and 4 others, §§ 83-84, 15 November 2018).

IV. OTHER COMPLAINTS

12. In application no. 71977/12, Mr Nagibin also complained under Article 6 §§ 1 and 3 (c) and (d) of the Convention of various procedural irregularities in the administrative-offence proceedings against him. Having regard to the facts of the case, the submissions of the parties and its findings above, the Court considers that it has examined the main legal questions raised in the present application. It thus considers that the applicant's remaining complaints are admissible but that there is no need to give a separate ruling on them (see *Centre for Legal Resources on behalf of Valentin Câmpeanu v. Romania* [GC], no. 47848/08, § 156, ECHR 2014).

APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Mr Nagibin and Mr Ryazantsev claimed 4,000 euros (EUR) each in respect of non-pecuniary damage and EUR 5,000 for the legal services of their representative in the proceedings before the Court in respect of application no. 77503/12. Mr Nagibin was not required to make any claims for just satisfaction in applications nos. 71977/12, 20463/13, and 23834/17, falling under the well-established case-law of the Court.

14. The Government contested the applicants' claims made in respect of the application no. 77503/12.

15. The Court awards Mr Nagibin EUR 5,200 and Mr Ryazantsev EUR 4,000 in respect of non-pecuniary damage, plus any tax that may be chargeable. The Court dismisses the applicants' claim for costs and expenses because it has not been substantiated that the applicants paid them or were under a legally enforceable obligation to pay them (compare *Mazepa and Others v. Russia*, no. 15086/07, §§ 89-90, 17 July 2018; *Radzevil v. Ukraine*, no. 36600/09, §§ 94-96, 10 December 2019; *Udaltsov v. Russia*, no. 76695/11, § 201, 6 October 2020; and *Aghdgomelashvili and Japaridze v. Georgia*, no. 7224/11, § 61, 8 October 2020).

16. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the applications admissible;

3. *Holds* that there has been a violation of Article 11 of the Convention in respect of Mr Nagibin in application no. 77503/12;

4. *Holds* that there has been a violation of Article 6 § 1, Article 11 and Article 13 of the Convention as regards the other complaints raised by the applicants under the well-established case-law of the Court in all applications (see the appended table);

5. *Holds* that there is no need to examine the complaints under Article 6 §§ 1 and 3 (c) and (d) of the Convention in application no. 71977/12;

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the following sums, plus any tax that may be chargeable, in respect of non-pecuniary damage, to be converted into the currency of the respondent State at the rate applicable at the date of settlement:
   (i) EUR 5,200 (five thousand two hundred euros) to Mr Nagibin;
   (ii) EUR 4,000 (four thousand euros) to Mr Ryazantsev;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

7. *Dismisses* the remainder of the applicants' claim for just satisfaction.

Done in English, and notified in writing on 5 April 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Olga Chernishova Deputy Registrar	Darian Pavli President

APPENDIX

Complaints under the well-established case-law of the Court submitted by the applicants (violation)

No.	Application no. Case name Lodged on Represented by	Applicant Year of birth Place of residence Nationality	Nature of the public event Location Date	Restrictions applied	Other measures applied	Final domestic decision (type of proceeding) Name of the court Date	Complaints under the well-established case-law (violation)
1.	71977/12 Nagibin v. Russia 01/11/2012	Pavel Nikolayevich NAGIBIN 1971 Rostov-on-Don Russian	Meeting to support freedom of assembly and to draw the public's attention to the alleged falsification of elections of the President of the Russian Federation, Rostov-on-Don, 31/03/2012	Proposal to change the location	Arrest and administrative convictions under Arts. 19.3 § 1 and 20.2 § 5 of the CAO, fines of RUB 500 and RUB 1,000 respectively	Leninskiy District Court of Rostov-on-Don (administrative-offence proceedings) 02/05/2012; 19/06/2012 Rostov Regional Court (notification proceedings), 12/07/2012	Art. 11 – disproportionate measures taken against the applicant as an organiser of a peaceful assembly, namely the applicant's administrative arrest and convictions for having organised and participated in an unauthorised public event (*Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, §§ 402-77, 7 February 2017). Art. 6 § 1 – inability to submit evidence, including video-recordings, in defence of the applicant's version of events on an equal footing with the prosecution (*Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, §§ 83-84, 15 November 2018).
2.	77503/12 Nagibin and Ryazantsev v. Russia 18/10/2012 Oleg Nikolayevich AGAFONOV	Pavel Nikolayevich NAGIBIN 1971 Rostov-on-Don Russian Vladislav Yuryevich RYAZANTSEV 1990 Rostov-on-Don Russian	Public event in support of fair elections, Rostov-on-Don, 04/02/2012 March for fair elections, Rostov-on-Don, 24, 25 or 26/02/2012	Refusal to approve the location and time of the public event on the grounds that another public event was scheduled by the LDPR at the same time and location Refusal to approve the location of the public event		Rostov Regional Court (notification proceedings), 19/04/2012 Rostov Regional Court (notification proceedings), 28/05/2012	Art. 11 – the local authorities' decisions refusing to approve the time and/or locations chosen by the applicants for the public events planned by them (*Lashmankin and Others*, cited above, §§ 402-77). Art. 13 – lack of any effective remedy in domestic law to challenge the refusals to approve the time and/or locations of the public events planned by the applicants

No.	Application no. Case name Lodged on Represented by	Applicant Year of birth Place of residence Nationality	Nature of the public event Location Date	Restrictions applied	Other measures applied	Final domestic decision (type of proceeding) Name of the court Date	Complaints under the well-established case-law (violation)
			March for fair elections, Rostov-on-Don, 26/02/2012	Refusal to approve the time and location of the public event		Rostov Regional Court (notification proceedings), 24/05/2012	(*Lashmankin and Others*, cited above, §§ 342-61).
3.	20463/13 Nagibin v. Russia 22/02/2013	Pavel Nikolayevich NAGIBIN 1971 Rostov-on-Don Russian	"Strategy 31" meeting to support freedom of assembly and to draw public attention to the alleged falsification of election results, Rostov-on-Don, 31/05/2012	Refusal to approve a spontaneous public event because the request to hold it was submitted too late		Rostov Regional Court (notification proceedings), 23/08/2012	Art. 11 – refusal to approve the applicant's public event solely with reference to the applicant's non-compliance with the time-limits for the notification of the event (*Lashmankin and Others*, cited above, §§ 402-77). Art. 13 – lack of any effective remedy in domestic law to challenge the refusal to approve the applicant's public event (*Lashmankin and Others*, cited above, §§ 342-61).
4.	23834/17 Nagibin v. Russia 13/03/2017	Pavel Nikolayevich NAGIBIN 1971 Rostov-on-Don Russian	Demonstration to raise public awareness of the "Day of the Russian Nation", Rostov-on-Don, 05/04/2016		Arrest and administrative conviction under Art. 20.2 § 1 of the CAO, fine of RUB 10,000	Rostov Regional Court (administrative-offence proceedings), 15/09/2016	Art. 11 – disproportionate measures taken against the applicant as an organiser of and participant in a peaceful assembly, namely the applicant's administrative arrest and conviction for having organised and participated in an unauthorised public event (*Frumkin v. Russia*, no. 74568/12, §§ 93-142, 5 January 2016; *Navalnyy and Yashin v. Russia*, no. 76204/11, §§ 49-75, 4 December 2014; and *Kasparov and Others v. Russia*, no. 21613/07, §§ 82-97, 3 October 2013).